

VCL302772 Discover Bank vs. Lopez, Jose

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-25

Motion: Motion for Entry of Judgment Under Code of Civil Procedure section 664.6

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Re: Discover Bank vs. Lopez, Jose

Case No.: VCL302772

Date: August 25, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Motion for Entry of Judgment Under Code of Civil Procedure section 664.6

Tentative Ruling: To grant the motion and enter judgment as requested.

Facts

In this matter, Plaintiff indicates that the parties, on or about December 19, 2023, entered into a stipulation to resolve this matter. The parties' stipulation indicates Defendant acknowledges the principal amount of \$6,713.64 and that the parties agreed that no judgment would be entered against Defendant so long as Defendant paid an agreed settlement amount in certain monthly installments of \$250 commencing November 15, 2023.

In the event of default, the settlement agreement indicates that Plaintiff is entitled to entry of judgment for the judgment amount noted above, less any credits and plus costs. The agreement indicates that the Court shall retain jurisdiction under Code of Civil Procedure section 664.6.

This matter does not appear to have been dismissed.

Plaintiff indicates that Defendant made payments totaling \$1,000 but has failed to make any further payments.

Authority and Analysis

Section 664.6 (a) states:

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

"The court's retention of jurisdiction under section 664.6 includes jurisdiction over both the parties and the case itself, that is, both personal and subject matter jurisdiction." (Lofton v. Wells Fargo Home Mortgage (2014) 230 Cal.App.4th 1050, 1061.)
"Section 664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit." (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1360.)

As indicated above, the Court retains jurisdiction over the parties and this matter and therefore is prepared to "enter judgment pursuant to the terms of the settlement."

Defendant appears to have breached the settlement, based upon the declaration of Plaintiff's counsel and, the Court, having no opposition, grants the motion and enters judgment in the amount requested of \$6,140.09 consisting of the \$6,717.64 principal amount, less \$1,000 in payments made plus \$422.45 in court costs.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.